

application, and no other person could be found to accept the office, on the ground that the wife, who had a life interest to her separate use without power of anticipation, would not be properly protected (*h*).

[**Settled Land Act.**]—A tenant for life of settled land will not be appointed by the Court a trustee of the settlement under the Settled Land Act, 1882 (*i*). And in one case the Court refused to appoint two brothers trustees, and said there must be two independent \* trustees (*a*). [\*42] In a recent case the Court refused to sanction the appointment by a continuing trustee, who was a solicitor and acted as such for the trust and for some of the *beneficiaries*, of his son and partner, who was also a solicitor, as a co-trustee in the place of the retiring trustee, but intimated that such an appointment made *bonâ fide* out of Court would be valid (*b*).

19. [**Charity.**—Where a charity has been founded for the purpose of teaching or expounding certain religious doctrines, or for the exclusive benefit of persons holding certain religious views, the trusteeship of the charity should be confined to persons holding those doctrines or views (*c*), and the same rule would seem to apply where the religious object of the charity is the primary object, though there may be a secondary object, as for instance the repairing of roads, which can be administered as well by persons of one sect or religious belief as of another. But where the object of the charity is eleemosynary, and it is not restricted to persons of any particular religious denomination, the trusteeship need not be confined to persons holding the doctrines of the church or sect to which the founder belonged, but the most eligible person for the office may be selected without regard to his religious views (*d*).]

[(*h*) *Re Lowdell's Trust*, M. S. S., M. R. 11 June, 1877.]

[(*i*) *Re Harrop's Trusts*, 24 Ch. D. 717.]

[(*a*) *Re Knowles' Settled Estates*, 27 Ch. D. 707.]

[(*b*) *Re Norris*, 27 Ch. D. 333.]

[(*c*) *Re Ilminster Free School*, 4

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[(*d*) Attorney-General *v.* St. John's Hospital, Bath, *ubi sup.*]